

STATE OF NEW YORK

3629--A

Cal. No. 397

2025-2026 Regular Sessions

IN SENATE

January 29, 2025

Introduced by Sen. FERNANDEZ -- read twice and ordered printed, and when printed to be committed to the Committee on Environmental Conservation -- reported favorably from said committee, ordered to first report, amended on first report, ordered to a second report and ordered reprinted, retaining its place in the order of second report

AN ACT to amend the environmental conservation law, in relation to prohibiting the participation of certain animals in traveling animal acts

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The environmental conservation law is amended by adding a new section 11-0541 to read as follows:

§ 11-0541. Traveling animal acts.

1. Notwithstanding any other provision of law, no person shall allow for the participation of a covered animal in a traveling animal act.

2. The department shall not issue a permit or license, including, but not limited to, an education or exhibition permit or an endangered or threatened species license that would allow for the participation of a covered animal in a traveling animal act.

3. This section shall not apply to a performance that takes place at a non-mobile, permanent institution or other fixed facility.

4. For the purposes of this section, the following terms shall have the following meanings:

(a) "Covered animal" shall mean any of the following animals, including hybrids thereof:

(i) Felidae, but excluding domestic cats;

(ii) Kangaroo;

(iii) Non-human primate;

(iv) Ursidae; and

(v) Wallaby.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 (b) "Mobile or traveling housing facility" shall mean a transporting
2 vehicle such as a truck, trailer, or railway car, used to transport or
3 house animals while traveling for exhibition or other performance.

4 (c) "Performance" shall mean any exhibition or public showing, presen-
5 tation, display, exposition, fair, animal act, circus, ride, trade show,
6 petting zoo, carnival, parade, race, or similar undertaking in which
7 covered animals are required to perform tricks, give rides, or partic-
8 ipate as accompaniments for the entertainment, amusement, or benefit of
9 a live audience.

10 (d) "Traveling animal act" shall mean any performance of covered
11 animals where such animals are transported to, from, or between
12 locations for the purpose of such performance, in a mobile or traveling
13 housing facility.

14 5. A violation of this section shall be punishable by a civil penalty
15 of not more than one thousand dollars.

16 § 2. This act shall take effect December 31, 2026.